

Calderwood Partners LLC

www.calderwoodpartners.com

June 6, 2015

Barbara Banks
Chief Operating Officer
Johnson, Lopez and Brooks

Dear Ms. Banks:

I am writing to record, with as much care as I can bring to it, the terms on which our firm would undertake the commercial due diligence you and your colleagues have asked us to perform, so that once you have read this letter and, finding that it captures the understanding we reached in our recent conversations, returned a signed copy to me, there exists a single document to which either of us can turn should a question later arise about what was agreed. I have tried throughout to commit us only to what I am confident we can deliver, and should any passage below read as promising more than that, I would ask you to raise it with me before you sign, so that nothing in the letter outruns what we can actually do.

The Question You Have Put to Us

As we understand it, Johnson, Lopez and Brooks is weighing a decision in which the commercial standing of the business under review matters more than any single figure on its financial statements, and you have asked us to examine that standing from the outside and to report on it plainly. Our work will take in the market the business serves and the direction and pace at which that market is moving, the position the business holds within it and the durability of that position against its competitors, the composition and loyalty of its customers, and the quality and repeatability of the revenue it reports, so that you can enter your decision knowing where the commercial case is genuinely strong and where it rests on assumptions that will not bear their weight. What the engagement does not take in is a view on the accounting, the tax exposure, or the legal terms of any transaction, on which you should continue to rely on the advisers who ordinarily provide it; where our analysis touches those matters we will offer a reasoned commercial judgment and not a professional opinion in their place.

How We Intend to Work

Our method is deliberate, and I hope you will find it plain rather than clever. We begin by assembling the evidence patiently and reconciling it against itself before we draw a single conclusion from it, so that every judgment we eventually put in front of you can be traced back to the source beneath it and questioned there if you wish. Where the evidence will support a firm view we will give you one, and where it will support only a range or a caution we will tell you so instead, because a conclusion that runs past what we actually know is of no use to you and no credit to us, and a commercial due diligence earns its keep precisely at the points where it declines to overstate.

Who Will Do the Work

I will keep my own hand on the engagement and read anything of consequence before it leaves us under the firm's name, but the daily work will rest with three of our people whom I would ask you to come to know. Melissa Casey will build the exhibits on which the findings rest and hold the status pack consistent from one week to the next, keeping every chart tied to the source beneath it. Cynthia Hart will carry the industry and competitive research, reading widely across the public record and distilling what she finds into short, sourced summaries. Nicole Griffin will gather and keep in order the source material the analysis runs on, from public filings to the notes taken in our working sessions, so that no figure we show you is ever unmoored from where it came from. You are welcome to reach me at any time, though for most day-to-day matters Melissa Casey will be the quicker route to an answer.

Fee and Start

Our fee for the engagement as I have described it is \$112,500, which covers the time of the people named above through the completion of the work and against which we will render invoices as the engagement proceeds. We would begin the work on June 16, 2015, and would move promptly into the first information requests and interviews after that, so that the opening weeks are not lost to arranging what could have been settled in advance.

Rendering and Payment of Invoices

Each invoice we render against the fee stated above is payable within thirty days of your receipt of it. The fee covers our people and their time, and not the incidental costs of the work, such as travel or the purchase of third-party market data, which we will incur only with your agreement and pass through to you at what they cost us

and nothing more. Should the shape of the work change materially from what this letter contemplates, I will raise the fee with you and we will settle it together before any further work is done, so that nothing ever reaches you on an invoice as a surprise.

Term and Termination

We expect the engagement to run for something on the order of seven months, though I would ask you to treat that as an honest estimate of the work rather than a promise about the calendar, since we will regard the assignment as finished when it is genuinely done and not merely when a set number of weeks has passed. Either of us may bring the engagement to an end on thirty days' written notice to the other, and should you choose to do so you would owe us for the work properly performed to that point and for any costs already committed on your behalf, and for nothing beyond that.

Confidentiality

Everything we learn about Johnson, Lopez and Brooks and about the business under review in the course of this work we will hold in confidence and use only for the purposes of the engagement. That obligation binds every member of the team, it outlasts the end of our work together, and it covers the fact of our involvement as fully as it covers its substance. We would ask the same of you in respect of the methods and written materials we share, which are the firm's own way of working and are meant for your use rather than for wider circulation.

Limitation of Liability

We will perform the work with the care and skill you are entitled to expect of a firm engaged for it, and we stand behind what we do. We do not, however, control the commercial decision that Johnson, Lopez and Brooks will ultimately take on the strength of our advice, nor the conditions in which that decision is carried out, and so, save to the extent the law does not permit such a limit, our liability to you arising out of this engagement is limited to the fees paid under it.

Governing Law

This agreement is governed by the law of the state in which our firm is established, and any dispute arising under it will be determined by the courts of that state. Should any single provision of this letter be held unenforceable, the remainder will stand, unaffected by it.

If this letter reflects the understanding we reached, I would be grateful if you would sign the enclosed copy where indicated below and return it to me, keeping the second copy for your own file; once your signed copy is in hand, Melissa Casey will write to arrange the opening interviews and the first requests for information, so that we lose none of the early weeks to settling what can be settled now.

Julie Ramsey

Managing Principal

Date: June 6, 2015

Barbara Banks

Chief Operating Officer, Johnson, Lopez and Brooks

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